
BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE

IN THE MATTER OF:

CINDEE WEBSTER CAMPBELL, LMHC
License No. 00304,

Respondent.

CASE NO. BS 08-003

SETTLEMENT AGREEMENT
AND FINAL ORDER

COMES NOW the Iowa Board of Behavioral Science (Board) and Cindee Webster Campbell (Respondent), and pursuant to Iowa Code sections 17A.10 and 272C.3(4), hereby enter into the following Settlement Agreement and Final Order of the contested case currently on file against the Respondent:

1. Respondent was issued Iowa license 00304 on August 22, 1997.
Respondent's license is current and will next expire on September 30, 2010.
2. The Board filed a Notice of Hearing and Statement of Charges against the Respondent on September 15, 2009, charging Respondent with obtaining, possessing, attempting to obtain or possess, or administering controlled substances without lawful authority, in violation of 645 IAC 33.2(8) and practicing outside the scope of practice in violation of 645 IAC 33.2(5). A contested case hearing in this matter is scheduled for February 5, 2010.
3. The Board has jurisdiction over the parties and subject matter of the Notice of Hearing and Statement of Charges.
4. Respondent admits that on April 29, 2008, she provided a controlled substance prescription to a minor patient's mother and agrees to enter into this Settlement Agreement to resolve the contested case proceeding.
5. Execution of this Settlement Agreement and Final Order constitutes the resolution of a contested case. Respondent has a right to a hearing on the charges, but

waives Respondent's right to hearing and all attendant rights, including the right to seek judicial review, by freely and voluntarily agreeing to this Settlement Agreement and Final Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following a contested case hearing.

6. Respondent is freely and voluntarily entering into this Settlement Agreement and Final Order. Respondent agrees that the State's counsel may present this agreement to the Board and may have *ex parte* communications with the Board while presenting it.

7. This Settlement Agreement and Final Order is subject to approval by the Board. If the Board approves this Settlement Agreement and Final Order, it becomes the final disposition of this matter. If the Board fails to approve this Settlement Agreement and Final Order, it shall be of no force or effect to either party.

8. This Settlement Agreement and Final Order shall be part of Respondent's permanent record and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

9. In the event Respondent violates or fails to comply with any of the terms of this Settlement Agreement and Final Order, the Board may initiate appropriate action to revoke or suspend Respondent's license or to impose other licensee discipline in accordance with Iowa Code section 272C.3(2)(a).

10. This Settlement Agreement and Final Order is a public record available for inspection and copying upon execution of this Settlement Agreement and Final Order in accordance with the requirements of Iowa Code chapters 22 and 272C. The Notice of Hearing is also a public record which became available for inspection and copying the date it was filed in accordance with the requirements of Iowa Code chapters 17A, 22, and

272C.

11. The Board's approval of this Settlement Agreement and Final Order shall constitute a **FINAL ORDER** of the Board.

IT IS THEREFORE ORDERED:

12. Respondent license shall be SUSPENDED for a period of 2 weeks. During the period of suspension, Respondent shall not utilize any designation, abbreviation, or title which implies the Respondent is licensed to practice mental health counseling or otherwise hold herself out to be providing mental health counseling services. During the suspension period, Respondent shall not engage in any activity or practice of mental health counseling in the State of Iowa for which a license is required.

13. Following the suspension period, Respondent's license shall be placed on PROBATION for a period of one year, subject to the following terms and conditions:

a. Respondent shall complete 20 hours of continuing education meeting the standards set forth in 645 IAC ch. 32 in the areas of mental health counseling scope of practice and Iowa laws and rules during her period of probation. These hours are in addition to the hours required for licensure renewal and shall not be counted toward the hours required for renewal.

b. Respondent agrees to submit quarterly reports to the Board no later than April 1, July 1, October 1, and January 1 during her period of probation. The quarterly reports shall include the time period covered by the report, the name and address of all places Respondent is employed and/or practicing as a mental health counselor and a description of her duties, and any other information necessary to demonstrate compliance with the Board's Order.

c. Respondent agrees to notify the Board in writing prior to any change in her

practice address or status. Failure to notify the Board within fifteen days of a change in employment status shall constitute a violation of this agreement.

14. Respondent shall obey all federal, state and local laws, and all rules governing the practice of mental health counseling in Iowa.

15. Upon request of the Board, Respondent shall appear before the Board to report on the status of her practice and to answer any questions or concerns the Board may have regarding her practice as a mental health counselor. The Board shall provide Respondent with reasonable notice of time, date and place for any requested appearance. Respondent agrees that any such appearance is governed by 645 IAC 9.7 and waives any and all objections to the Board members both participating in the appearance and later participating in decision makers in a contested case hearing.

16. Upon full compliance with the terms and conditions of the probationary period, Respondent's license to practice as a mental health counselor in the state of Iowa shall be restored to its full privilege, free and clear of all restrictions.

AGREED AND ACCEPTED:

This settlement agreement and final order is approved by the Board on March 26, 2010.